

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Jacobson	Team: Team # 4	CCRB Case #: 201406088	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 06/19/2014 3:57 PM	Location of Incident: § 87(2)(b)	Precinct: 101	18 Mo. SOL 12/19/2015	EO SOL 12/19/2015	
Date/Time CV Reported Thu, 06/19/2014 4:37 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 06/19/2014 4:37 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Scott Blennau	4746	945515	075 PCT
2. POM Nicholas Ventimiglia	12331	945337	101 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Stavros Spanos	04800	943839	101 PCT
2. POM Gregory Lomangino	28920	936968	101 PCT
3. POM Drew Solomon	17527	946279	101 PCT
4. POM Jolan Lewis	07344	933929	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Scott Blennau	Abuse: Sgt. Scott Blennau stopped § 87(2)(b)	§ 87(2)(b)
B.POM Nicholas Ventimiglia	Abuse: PO Nicholas Ventimiglia stopped § 87(2)(b)	§ 87(2)(b)
C.SGT Scott Blennau	Abuse: Sgt. Scott Blennau searched § 87(2)(b)	§ 87(2)(b)
D.SGT Scott Blennau	Abuse: Sgt. Scott Blennau frisked § 87(2)(b)	§ 87(2)(b)
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On June 19, 2014, at approximately 3:57 p.m., § 87(2)(b) exited his residence at 120 Beach 19th Street and was stopped by Sgt. Scott Blennau and PO Nicholas Ventimiglia of the 101st Precinct (**Allegation A and B**). § 87(2)(b) alleged that Sgt. Blennau reached into his pocket and removed his wallet and identification, looked in his back and front pockets, and then patted him down between his legs and genitalia (**Allegation C and D**). § 87(2)(b) was not arrested or summonsed as a result of this incident. § 87(4-b), § 87(2)(g)

§ 87(2)(g)

Mediation and Criminal Histories

§ 87(2)(b) rejected mediation § 87(2)(b)

§ 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- Sgt. Blennau has been a member of the NYPD for seven years, has had four previous CCRB allegations involving three cases with no substantiated allegations. § 87(2)(g)
- PO Ventimiglia has been a member of the NYPD for seven years, has had six previous CCRB allegations involving four cases with no substantiated allegations. § 87(2)(g)
- § 87(2)(b) has had one previous CCRB complaint (encl. B3). § 87(2)(b)

Civilian Statements Complainants/Victims

§ 87(2)(b) (encl. D1-5)

§ 87(2)(b) alleged that after exiting his apartment building, § 87(2)(b), he was approached on the street by three officers, identified as Sgt. Blennau, PO Ventimiglia, and PO Lewis. One of the officers, either PO Ventimiglia or PO Lewis, asked § 87(2)(b) what his name was and if he lived in the building. § 87(2)(b) confirmed to the officers that he lived at § 87(2)(b), at which point, he was asked how long he had lived there and if he knew what was going on in the building. One of the officers then asked § 87(2)(b) if he had identification, which he responded affirmatively to. Sgt. Blennau then reached into § 87(2)(b)'s pocket and removed his wallet and identification, looked in his back and front pocket, and then felt down between his legs and around his genitalia. At some point, gloves he had been carrying in his back pocket were also removed. § 87(2)(b) denied raising his voice during the interaction, but stated the displeasure was obvious in his voice.

NYPD Statements

Subject Officer: SGT. SCOTT BLENNAU (encl. E1-7)

Sgt. Blennau was interviewed at the CCRB on February 25, 2015. At the time of the incident, Sgt. Blennau had the rank of PO. Sgt. Blennau stated that he observed § 87(2)(b) enter and exit the lobby area of § 87(2)(b) two different times. After the second time, § 87(2)(b)

§ 87(2)(b) exited the building and Sgt. Blennau decided to approach him without any discussion with his partners. Sgt. Blennau believed that § 87(2)(b) may have been trespassing due to this observation. When Sgt. Blennau approached him, he asked § 87(2)(b) for identification. § 87(2)(b) asked him why he was being stopped and began to drop his right hip away from Sgt. Blennau and reach toward his waistband. These movements caused Sgt. Blennau to suspect § 87(2)(b) had a weapon on him and he frisked the vicinity of § 87(2)(b)'s waistband. Upon frisking this area, Sgt. Blennau discovered a hard object. Sgt. Blennau was unable to recall what the hard object was or where on § 87(2)(b)'s body it was located. Sgt. Blennau prepared a UF-250 in relation to the incident (encl. E3-4).

Subject Officer: PO NICHOLAS VENTIMIGLIA (encl. F1-7)

PO Ventimiglia was interviewed at the CCRB on March 4, 2015. PO Ventimiglia stated that he observed § 87(2)(b) enter and exit the building of § 87(2)(b) two different times. PO Ventimiglia identified § 87(2)(b) as a Trespass Affidavit Program building. After the second time § 87(2)(b) exited the building, PO Ventimiglia and Sgt. Blennau made a joint decision to approach him. Both officers believed § 87(2)(b) may have been trespassing and stopped him solely on this observation. As soon as the officers approached § 87(2)(b) he bladed his body away from PO Ventimiglia and moved his hand towards his right hip. Sgt. Blennau frisked § 87(2)(b) touching only his right hip area. PO Ventimiglia stated that nothing was discovered as a result of this frisk. He did not recall the discovery of any hard object.

Witness Officer: PO JOLAN LEWIS (encl. G1-7)

PO Lewis was interviewed at the CCRB on February 24, 2015 and had no independent recollection of the incident. PO Lewis recalled stopping two individuals on the corner of § 87(2)(b) § 87(2)(b) because he did not recognize one of them. He stated that while he was conducting this stop, a security guard for § 87(2)(b) § 87(2)(b) came out to the street and informed the officers of an individual trespassing. Sgt. Blennau responded to the security guard and walked over to where the security guard and individual were, approximately a block away. PO Lewis did not walk over to that location. He did not see Sgt. Blennau make any physical contact with the individual, hear any part of his conversation with the individual, or learn any information regarding what had happened.

Additional Officers (encl. H1-J5)

Sgt. Stavros Spanos, PO Drew Soloman, and PO Gregory Lomangino were identified as possible subject officers and were interviewed at the CCRB. The license plate § 87(2)(b) provided corresponded to vehicle 151, which was identified as a vehicle typically used by the Conditions team. Sgt. Spanos, PO Soloman, and PO Lomangino were members of the Conditions team on the day of the incident, although it was later discovered that vehicle 151 was assigned to Sgt. Blennau, PO Ventimiglia, and PO Lewis on that day. Following his interview, Sgt. Spanos appeared at a later date and presented a handwritten UF-250 to the investigator, which identified Sgt. Blennau. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

Sgt. Blennau and PO Ventimiglia both described observing § 87(2)(b) entering and exiting his building, and stopping him based on this observation. Additionally, PO Ventimiglia stated that it was a joint decision by Sgt. Blennau and himself to approach § 87(2)(b). Both officers stated

that PO Lewis did not take part in this decision. § 87(2)(g)

Allegation A – Abuse of Authority: Sgt. Scott Blennau stopped § 87(2)(b)

Allegation B – Abuse of Authority: PO Nicholas Ventimiglia stopped § 87(2)(b)

§ 87(2)(b) alleged that after exiting his building, three officers approached him from their vehicle and the driver of the vehicle asked him his name and if he lived at § 87(2)(b). § 87(2)(b) then asked him for identification. During his interview, PO Ventimiglia identified § 87(2)(b) as a Trespass Affidavit Building. This statement was confirmed following a phone call to Sgt. Garrity at the 101st Precinct desk. Sgt. Blennau and PO Ventimiglia acknowledged stopping § 87(2)(b) after seeing him exit the building. Sgt. Blennau and PO Ventimiglia both stated that they stopped § 87(2)(b) after observing him enter and exit the lobby area of the building twice. Both officers stated that these observations led them to believe that § 87(2)(b) was trespassing and were the sole reason for stopping § 87(2)(b). Sgt. Blennau and PO Ventimiglia stated that they often receive complaints about criminal trespassing and drug activity within the building; however neither officer suspected § 87(2)(b) of drug activity. In his testimony, PO Lewis stated that while he was conducting a stop of two individuals, a security guard came out of § 87(2)(b) and flagged down the officers to alert them of an individual trespassing. Neither Sgt. Blennau nor PO Ventimiglia corroborated this.

The stop and frisk report, prepared by Sgt. Blennau, states that § 87(2)(b) was stopped on suspicion of criminal trespass and criminal possession of a weapon. The circumstance leading to the stop is listed as “furtive movements.”

A stop requires reasonable suspicion that the individual being stopped has committed, is committing, or is about to commit a crime. People v. DeBour, 40 N.Y.2d 210 (1976) (encl. A1-13). An individual’s presence inside of a high-crime location, without additional observations, does not provide the police with even an objective credible reason to approach and question such person. People v. Johnson, 2013 NY Slip Op 05723 (App. Div. 1st Dep’t. 2013). (encl. A14-19). Additionally, merely leaving a trespass affidavit building does not provide an objective credible reason for officers to approach an individual. People v. Almonte, 927 N.Y.2d 818 (2011) (encl. A20-22).

§ 87(2)(g)

Allegation C – Abuse of Authority: Sgt. Scott Blennau searched § 87(2)(b)

Allegation D – Abuse of Authority: Sgt. Blennau frisked § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Blennau asked him if he had anything in his pockets that would stick him and then reached into his pocket and took out his wallet and ID, then proceeded to look in § 87(2)(b)’s back and front pocket, and then pat him down between his legs and around his genitalia.

Both Sgt. Blennau and PO Ventimiglia stated that after approaching § 87(2)(b) § 87(2)(b) § 87(2)(b) bladed his body and reached his hand towards his right hip. Sgt. Blennau stated that he

Pod: 9

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date